

[1 EDW. 8. & Ministry of Health [Ch. lxxiv.]
1 GEO. 6.] Provisional Order Confirmation
(Sevenoaks Water) Act, 1937.



CHAPTER lxxiv.

An Act to confirm a Provisional Order of the A.D. 1937.
Minister of Health relating to the Sevenoaks —
Waterworks Company. [13th July 1937.]

WHEREAS under the provisions of the Gas and 33 & 34 Vict.
Water Works Facilities Act 1870 and the Gas c. 70.
and Water Works Facilities Act 1870 Amendment Act 36 & 37 Vict.
1873 the Minister of Health has made a provisional c. 89.
order which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as Order in
amended is set out in the schedule to this Act is hereby schedule
confirmed and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Sevenoaks Water) Act
1937.

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SCHEDULE.

SEVENOAKS WATER.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Sevenoaks Waterworks Company to raise additional capital and re-define their limits of supply conferring further powers on the Company with regard to the supply of water and for other purposes.

THE MINISTER OF HEALTH in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This order may be cited as the Sevenoaks Water Order 1937 and the Sevenoaks Water Act and Orders 1878 to 1930 the Sevenoaks Water Order 1934 and this order may be cited together as the Sevenoaks Water Act and Orders 1878 to 1937.

Commence-
ment of
order.

2. This order shall come into operation on the date of the Act of Parliament confirming it.

Incorporation of
certain
Acts.

3.—(1) In so far as the same are applicable to the purposes of this order and are not inconsistent with the provisions of the Sevenoaks Water Act and Orders 1878 to 1937 the provisions of—

8 & 9 Vict.
c. 16.

(a) The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) as amended by the Companies Clauses Consolidation Act 1888;

51 & 52 Vict.
c. 48.

(b) Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 and the Companies Clauses Act 1869;

26 & 27 Vict.
c. 118.
32 & 33 Vict.
c. 48.
10 & 11 Vict.
c. 17.
26 & 27 Vict.
c. 93.

(c) The Waterworks Clauses Acts 1847 and 1863 as amended by any enactment;

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(except the words "with the consent in writing of the owner" or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847 and except where the provisions of the said Acts or any of them are expressly varied by this order) are incorporated with this order.

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PART I.
—cont.

(2) In the construction of the enactments so incorporated with this order the expression "special Act" shall be read as a reference to this order and the expression "Company" shall mean the Undertakers.

4.—(1) In this order the several words terms and expressions to which by the Acts in whole or in part incorporated with this order or by the Gas and Water Works Facilities Act 1870 meanings are assigned shall unless the context otherwise requires have the same respective meanings. Interpretation.

(2) In this order unless the context otherwise requires—

"the commencement of this order" means the date upon which this order comes into operation;

"the Undertakers" means the Sevenoaks Waterworks Company;

"the directors" means the directors of the Undertakers;

"employee" means any workman servant or officer of the Undertakers other than a director;

"the undertaking" means the undertaking of the Undertakers as existing from time to time;

"the limits of supply" means the limits within which the Undertakers are for the time being authorised to supply water;

"the Minister" means the Minister of Health;

"stopcock" means a stopcock which is fitted on a service pipe and of which every part is situate in a street;

"service main" means a service main of the Undertakers but does not include any main or pipe forming part of any of the aqueducts specifically authorised by the Sevenoaks Water Act and Orders 1878 to 1930 and shown on the deposited plans relating thereto;

"service pipe" means so much of any pipe for supplying water from a service main to any house building or premises as is subject to water pressure from such main;

"communication pipe" means so much of any service pipe as extends from a service main to—

(a) the stopcock or stopcocks (if any) fitted on such pipe; or

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PART I.
—cont.

(b) where a stopcock is not fitted on such pipe the point at which such pipe passes the boundary of the street or the point in or under the street at which such pipe enters any house building or premises whichever of those points is the nearer to the service main;

and includes the ferrule at the junction of such pipe with such service main and where there is a stopcock fitted on such pipe includes also the stopcock and the box (if any) containing the stopcock and any cover to such box; and

“supply pipe” means so much of any service pipe as is not a communication pipe.

PART II.

FINANCIAL.

Additional
capital.

5. In addition to the capital of the Undertakers authorised by the Sevenoaks Water Act and Orders 1878 to 1930 and the Sevenoaks Water Order 1934 the Undertakers for the purposes of the undertaking from time to time may raise additional capital not exceeding in the whole fifty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively :

Provided that the Undertakers shall not under the powers of this order—

(a) issue any share of less nominal value than ten pounds ;
or

(b) create and issue any greater nominal amount of capital than will be sufficient to produce after taking into account the premiums and discounts (if any) which may be obtained or allowed respectively on the issue of such capital the sum of fifty thousand pounds.

Minimum
holdings of
stock and
debenture
stock.

6.—(1) All ordinary stock and preference stock and debenture stock of the Undertakers shall be issued and be held in amounts of ten pounds or of an integral number of pounds exceeding ten and not otherwise and the Undertakers shall not be under any obligation to register a transfer of stock of any such class which would make the holding (if any) of the transferor or transferee of stock of that class less than ten pounds or other than an integral number of pounds being ten or more.

(2) Notice of this enactment as far as applicable shall be stated in all certificates of ordinary stock and preference stock and debenture stock of the Undertakers issued after the commencement of this order.

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(3) The provisions of this section shall not apply to any holding of stock which at the commencement of this order is of an amount of less than ten pounds so long as the whole of such stock is held by the present holder thereof or his legal personal representative or by a transferee direct from the present holder or his legal personal representative.

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PART II.
—cont.

7. The Undertakers shall not in any year pay out of their profits any larger dividend on the additional capital authorised by this order than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum nor than six pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as preference capital.

Limits of
dividend on
capital.

8. Except as by this order otherwise provided the additional capital created by the Undertakers under this order and the new shares or stock in that capital and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as if the additional capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital :

Additional
capital to
be subject
to same
incidents
as existing
capital.

Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

9.—(1) All ordinary or preference shares or stock issued by the Undertakers after the commencement of this order shall be issued in accordance with the provisions of this section.

New
capital to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine :

Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk to the local authority of every county district wholly or partly within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the receipt of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;

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PART II.
—cont.

- (b) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Minister not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;
- (c) In the case of a sale by auction no lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds and no bid shall be recognised unless it is in advance of the last preceding bid;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of shares or stock of the Undertakers may be accepted in preference to the offer of the same sum by any person not such a holder as aforesaid and preference may in like manner be given to the offer of any employee of the Undertakers or of any consumer of water supplied by the Undertakers;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 to 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the directors may think fit or to one or more of those classes of persons only :

Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold may be disposed of for the purpose of realising the best price obtainable at such price and in such manner as the directors may determine.

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(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Minister stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of shares or stock.

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PART II.
—cont.

10. If in any year or (if the Undertakers declare a dividend half-yearly) in any half-year the net revenues of the Undertakers applicable to dividend shall be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each class.

Dividends
on different
classes of
ordinary
capital.

11. Notwithstanding anything in any Act or order relating to the Undertakers the Undertakers may with the approval of the Minister and subject to such conditions as the Minister may think fit to impose offer for subscription by the public any ordinary shares or stock or preference shares or stock or debenture stock which they may for the time being be authorised to issue.

Power to
offer shares
or stock for
subscription
by public.

12. The Undertakers when ordinary shares or stock or preference shares or stock or debenture stock are to be issued may with the approval of the Minister and subject to such conditions as the Minister may think fit to impose pay a commission not exceeding two and a half per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such shares or stock or procuring or agreeing to procure subscriptions whether absolute or conditional therefor :

Provisions
as to pay-
ment of
commission
on sale of
shares or
stock.

Provided that—

- (a) the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Undertakers relating to the issue of the ordinary shares or stock or preference shares or stock or debenture stock ; and
- (b) nothing in this section contained shall affect any power of the Undertakers to pay brokerage.

13.—(1) Notwithstanding anything contained in the Sevenoaks Water Act and Orders 1878 to 1937 or the Acts incorporated with any of them the Undertakers at any time after the commencement of this order and without obtaining the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 or the said Act and Orders may borrow on mortgage in respect of the capital raised by them before the commencement of this order by the issue of shares or stock sums not exceeding in the aggregate twelve thousand pounds.

Power to
borrow.

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(2) In addition to any other sums which they are authorised by the Sevenoaks Water Act and Orders 1878 to 1930 and subsection (1) of this section to borrow the Undertakers may subject to the provisions of this order borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-half of the amount of the additional capital which at the time of borrowing has been raised under the powers of this order :

Provided that no sum shall be borrowed in respect of any capital so raised until the Undertakers have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the capital in respect of which such sum is borrowed together with the premiums (if any) realised on the sale thereof has been fully paid up.

Debenture
 stock.

14. The Undertakers may create and issue debenture stock subject to the provisions of section 8 (Power to create debenture stock) of the Sevenoaks Water Order 1930.

Limit of
 interest on
 money
 borrowed.

15. The Undertakers shall not without the consent of the Minister pay interest at a higher rate than five pounds per centum per annum in respect of any moneys borrowed on mortgage or any debenture stock issued under the authority of this order.

Existing
 mortgages
 to have
 priority.

16. All mortgages granted by the Undertakers in pursuance of or in conformity with any Act or order before the commencement of this order and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of the Act or order in pursuance of or in conformity with which the same were granted have priority over any mortgages granted under the authority of this order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Limitation
 on carry
 forward.

17. It shall be lawful for the Undertakers in respect of the undertaking to carry forward at the end of any year at the credit of the profit and loss (net revenue) account any sum not exceeding the total of the following amounts (that is to say) :—

- (a) The amount required by the Undertakers for paying any dividends or interest which the Undertakers are entitled or required to pay but have not paid in respect of that year ;
- (b) An amount equal to the total sum which the Undertakers would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year ;
- (c) An amount equal to the total sum which the Undertakers will be required to pay during the next following year as interest in respect of that year on any mortgages.

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18. All moneys raised under this order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this order shall not be considered as part of the capital of the Undertakers entitled to dividend.

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PART II.

—cont.

Application
of money.

PART III.

WATER SUPPLY.

19. On and after the commencement of this order the limits of supply shall be the urban district of Sevenoaks and the parishes of Riverhead Seal and Sevenoaks Weald in the rural district of Sevenoaks in the county of Kent.

Definition of
limits of
supply.

20. On the commencement of this order so much of every service pipe as constitutes a communication pipe not then the property of the Undertakers shall by virtue of this order become transferred to the Undertakers without payment therefor and as from the commencement of this order all communication pipes so transferred to the Undertakers shall belong to the Undertakers and the rights and obligations of the Undertakers with reference to the maintenance repair renewal and removal of pipes laid by them shall extend and apply to all such communication pipes as if they had been laid by the Undertakers under the provisions of this order :

Existing
communi-
cation
pipes trans-
ferred to
Undertakers.

Provided that if at any time after the commencement of this order a stopcock is fitted on a communication pipe so transferred to the Undertakers on which a stopcock was not fitted immediately before the commencement of this order the foregoing provisions of this section shall as from the date of such fitting cease to apply to so much of such communication pipe as lies between the stopcock and—

(a) the boundary of the street ; or

(b) the point in or under the street at which the service pipe enters any house building or premises ;

whichever is the nearer to the service main with which such communication pipe is connected and on and from the last-mentioned date that portion of such communication pipe shall by virtue of this order be transferred from the Undertakers to and belong to the person in whom the supply pipe connected with such communication pipe was immediately before that date vested and shall for all purposes (including the maintenance repair renewal and removal thereof) become part of such supply pipe as if the said stopcock had been fitted at the commencement of this order.

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PART III.
—cont.

New com-
munication
pipes to be
laid by
Undertakers.

21.—(1) After the commencement of this order the Undertakers shall notwithstanding anything in any Act or order relating to them have the exclusive right of—

- (a) providing and laying any communication pipe which is to be connected with any service main; and
- (b) executing any works for connecting such communication pipe with the service main.

(2) Where any consumer being the owner or occupier of any dwelling-house or part of a dwelling-house within the limits of supply shall have—

- (a) required the Undertakers to provide a supply of water to such premises for domestic purposes; and
- (b) laid the supply pipe; and
- (c) paid or tendered the portion of the water rate in respect of such premises which shall be payable in advance;

the Undertakers shall provide and lay with all reasonable dispatch the communication pipe requisite for furnishing such supply and any other necessary and proper apparatus including a stopcock with a suitable box and cover :

Provided that if the Undertakers so require the consumer shall deposit with the Undertakers before they commence to lay such communication pipe and other apparatus such a sum as the Undertakers may deem reasonably necessary to meet the expense of providing and laying the same.

If the Undertakers refuse or neglect to provide and lay any communication pipe pursuant to the provisions of this subsection they shall be liable to forfeit to the consumer a sum of five pounds and a further sum of forty shillings for every day during which such refusal or neglect shall continue and such penalties shall be recoverable in a summary manner.

(3) The cost incurred by the Undertakers in providing laying and connecting any communication pipe and other apparatus shall be borne by the consumer and the amount of such cost or so much (if any) thereof as shall not be covered by any sum deposited with the Undertakers as aforesaid (as the case may be) shall on the completion of the laying and connecting of such communication pipe and other apparatus be repaid to the Undertakers by the consumer and shall be recoverable in the like manner as the water rate payable in respect of the premises supplied or to be supplied is recoverable.

(4) All communication pipes and other apparatus as aforesaid provided and laid by the Undertakers pursuant to the provisions of this section shall belong to the Undertakers and the rights and obligations of the Undertakers with reference to the maintenance repair renewal and removal of pipes laid by

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them shall extend and apply to all such communication pipes and apparatus. A.D. 1937.

(5) Sections 44 to 47 of the Waterworks Clauses Act 1847 so far as they relate to any pipe which constitutes or forms part of a communication pipe shall cease to apply within the limits of supply.

PART III.
—cont.

22.—(1) The Undertakers shall not be bound to supply with water more than one house or building or part of a house or building occupied as a separate tenement by means of the same service pipe or the same part of a service pipe and they may if they think fit require that a separate service pipe be laid into each house or building or part of a house or building occupied as a separate tenement and supplied or intended to be supplied by them with water and that such service pipe shall be laid from a service main of the Undertakers or from such point between the service main and the house or building or part of a house or building as the Undertakers may determine : Separate service pipes may be required.

Provided that this section shall not apply in the case of a service pipe which at the commencement of this order is used for the supply of water to more than one house or building unless and until such service pipe requires renewal owing to its defective condition or otherwise in which event the Undertakers may require that a separate pipe shall be laid from the main pipe into each house or building formerly supplied with water by means of that service pipe.

(2) If the Undertakers require a separate service pipe to be laid as aforesaid they shall provide and lay with all reasonable dispatch so much of such separate service pipe as constitutes a communication pipe and may recover the cost of so doing from the owner of the house or building or part of a house or building to which the service pipe is required to be laid.

If the Undertakers fail to comply with the provisions of this subsection they shall be liable to forfeit to the consumer a sum of five pounds and a further sum of forty shillings for every day during which such failure shall continue and such penalties shall be recoverable in a summary manner.

(3) If the owner of any house or building or part of a house or building occupied as a separate tenement which is supplied with water by the Undertakers and to which the Undertakers shall have required a separate service pipe to be laid pursuant to subsection (1) of this section shall for a period of one month after the receipt of notice from the Undertakers requiring him so to do fail to provide and lay so much of the separate service pipe as constitutes a supply pipe the Undertakers may themselves do the work necessary in that behalf and recover the cost of so doing from such owner.

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PART III.
—cont.

41 & 42 Vict.
c. 14.

Maintenance
of communi-
cation
pipes.

(4) Any cost recoverable by the Undertakers from any owner under the provisions of this section shall be recoverable summarily as a civil debt.

(5) Section 71 (Company not bound to supply several houses by one pipe) of the Sevenoaks Waterworks Act 1878 is hereby repealed.

23. Notwithstanding anything in any Act or order relating to the Undertakers—

- (a) any person other than the Undertakers who immediately before the commencement of this order was responsible for the maintenance repair and renewal of or entitled to remove any service pipe shall on the commencement of this order cease to be responsible for the maintenance repair or renewal of or to be entitled to remove so much of such pipe as constitutes a communication pipe transferred to the Undertakers by virtue of this order; and
- (b) after the commencement of this order no person other than the Undertakers shall be responsible for the maintenance repair renewal or removal of so much of any service pipe as constitutes a communication pipe transferred to the Undertakers as aforesaid or laid by the Undertakers pursuant to this order.

Extension of
Undertakers
powers to
break up
streets.

24. The powers and obligations of the Undertakers with reference to the opening and breaking up and reinstatement of streets whether within or beyond the limits of supply for the purpose of laying pipes shall extend and apply to the laying maintaining repairing renewing and removing by them of communication pipes and other apparatus under the provisions of this order :

Provided that the Undertakers shall not exercise the powers of this section in respect of any street which is the property of the Southern Railway Company without the previous consent of that company but such consent shall not be unreasonably withheld.

Restriction
on powers
of other
persons to
break up
streets.

25. After the commencement of this order no person other than the Undertakers shall be entitled to open or break up any street within the limits of supply for laying any communication pipe or any apparatus fitted thereon or for maintaining repairing renewing or removing any communication pipe transferred by this order to or laid by the Undertakers or any apparatus fitted on any such communication pipe :

Provided that nothing in this section shall affect the provisions of section 153 of the Public Health Act 1875 or section 30 of the Tramways Act 1870.

38 & 39 Vict.
c. 55.
33 & 34 Vict.
c. 78.

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26.—(1) The powers of laying pipes conferred by sections 48 to 52 of the Waterworks Clauses Act 1847 and the provisions of those sections with reference to such pipes shall within the limits of supply apply to the supply pipe for any supply of water which the Undertakers shall be required after the commencement of this order to furnish for any purpose and shall not apply to a communication pipe as defined in this order.

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PART III.

—cont.

As to laying
and mainten-
ance of
supply pipes.

(2) For the purpose of complying with any obligation under this order or the Waterworks Clauses Act 1847 or the Waterworks Clauses Act 1863 to maintain repair renew or remove any supply pipe within the limits of supply or any apparatus fitted thereon the person for the time being liable to repair the same shall after the commencement of this order have the like power to open the ground and to open or break up the pavement of any street as is conferred upon him by sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of such pipes as are referred to in those sections.

(3) Except as in this order otherwise expressly provided nothing in this order shall alter or affect any right or obligation of any person—

(a) to provide lay maintain repair renew or remove any supply pipe; or

(b) to open the ground or open or break up the pavement of any street for any such purpose;

which would have existed if this order had not been made.

(4) The Undertakers may by agreement with any owner or occupier entitled or required to lay down maintain repair renew or remove any supply pipe and for that purpose to open or break up any street within the limits of supply execute such works on behalf of such owner or occupier and the cost incurred by the Undertakers in so doing shall be repaid by the owner or occupier with whom the agreement is made and be recoverable summarily as a civil debt.

27.—(1) Notwithstanding anything in any Act or order relating to the Undertakers the Undertakers shall have the exclusive right of executing any works on any communication pipe for connecting therewith any supply pipe laid after the commencement of this order and on the request of the consumer the Undertakers shall (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) execute on any such communication pipe any work which shall be necessary to connect therewith the supply pipe of such consumer.

Under-
takers to
make
connections
with
communi-
cation
pipes.

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 PART III.
 —cont.

(2) The cost incurred by the Undertakers in executing any work under this section shall be borne by the consumer and the amount of such cost shall on the completion of the work be repaid to the Undertakers by the consumer and shall be recoverable summarily as a civil debt.

As to
 stopcocks.

28.—(1) Any stopcock fitted on a communication pipe at any time after the commencement of this order shall be placed as near as reasonably practicable to the point at which such pipe passes the boundary of the street or the point in or under the street at which such pipe enters any house building or premises whichever of these points is the nearer to the service main.

(2) The box containing any such stopcock shall not be larger than is reasonably necessary.

Maintenance
 of common
 pipe.

29. Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the officer duly authorised in that behalf by the Undertakers.

Power to
 lay pipes in
 private
 streets.

30.—(1) The Undertakers may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 (Undertakers not to enter on private land without consent) of that Act were excepted from incorporation with this order and as if the persons having the control or management of the street included where the street is situate in an urban district the council of the district and where the street is situate in a rural district the county council of the administrative county of Kent.

(2) The Undertakers shall not without the previous consent of the Southern Railway Company exercise the powers conferred on them by this section in respect of any street belonging to and forming the approach to any station or depot of that Company but such consent shall not be unreasonably withheld and any question as to whether or not any such consent has been unreasonably withheld shall be referred to and determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such reference and determination.

52 & 53 Vict.
 c. 49.
 24 & 25 Geo. 5.
 c. 14.

[1 EDW. 8. & Ministry of Health [Ch. lxxiv.]
1 GEO. 6.] Provisional Order Confirmation
(Sevenoaks Water) Act, 1937.

31.—(1) Where the limits of supply are bounded by or abut upon any street or part of a street wholly outside those limits the Undertakers may for the purpose of supplying water to the owner or occupier of any premises abutting upon that street or part of a street and being within the limits of supply exercise with respect to such street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes (including communication pipes) as are exerciseable by them with respect to streets within the limits of supply subject nevertheless to the observance of the conditions imposed on an exercise of those powers.

(2) Nothing in this section shall entitle or require the Undertakers to supply water to the owner or occupier of any premises abutting upon any such street and being outside the limits of supply.

(3) In this section the word "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

32. The Undertakers may require that any premises the erection of which is commenced after the commencement of this order situate on land at a higher level than fifty feet below the top water level of the service reservoir from which a supply of water is furnished or to be furnished by them to such premises shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply to such premises for a period of twenty-four hours and the Undertakers shall not be required to supply any such premises until the same are provided with a cistern or cisterns in conformity with the requirements of this section.

33.—(1) The Undertakers may make byelaws as to the testing and stamping of taps cocks ferrules valves flushing cisterns flushing apparatus and other similar fittings and apparatus and prescribing the charge to be made for such testing and stamping.

(2) Such byelaws shall apply only to any such fittings or apparatus as are on premises to which the Undertakers are bound to afford and do afford or are prepared on demand to afford a constant supply.

(3) Any person who shall forge or counterfeit any stamp or mark used by the Undertakers or by the authority of the Undertakers for any of the purposes of this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

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—cont.

As to streets forming boundary of limits of supply.

Cisterns to be provided for high level supplies.

Byelaws as to testing and stamping of fittings.

[Ch. lxxiv.] *Ministry of Health* [1 EDW. 8. &
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(4) Nothing in this section or in any byelaw made there-
 under shall apply to any water fittings or apparatus used on
 any premises (not being a dwelling-house) belonging to and forming
 part of the railway of a railway company.

(5) Any byelaw made by the Undertakers under this section
 shall cease to have effect on the expiration of ten years from the
 date on which it was made :

Provided that the Minister may by order extend the period
 during which any such byelaw is to remain in force.

Provisions
 with regard
 to byelaws.

23 & 24
 Geo. 5. c. 51.
 26 Geo. 5. &
 1 Edw. 8.
 c. 49.

34. All byelaws made under the two last preceding sections
 of this order shall be subject to the provisions contained in sub-
 sections (2) (3) (4) (5) (6) (7) and (10) of section 250 and in sections
 251 and 252 of the Local Government Act 1933 and in sub-
 section (7) of section 132 of the Public Health Act 1936 and
 those provisions shall for the purposes of this section be construed
 as if the Undertakers were a local authority within the meaning of
 those sections and the secretary of the Undertakers were the clerk
 of the local authority The confirming authority for the purposes
 of the said section 250 shall be the Minister.

Rates
 leviable
 half-yearly.

35.—(1) Notwithstanding anything in the Waterworks Clauses
 Act 1847 or in any Act or order from time to time relating to
 the Undertakers the Undertakers may demand the water rates
 rents and charges leviable by the Undertakers by half-yearly
 instalments in advance on the first day of January and the first
 day of July in every year but so that the same shall not be
 recoverable until the expiration of two months from the date
 of demand :

Provided that any person who shall occupy any premises
 during part only of any half-year in respect of which the rate is
 so required to be paid shall be liable only for a part of the rate
 demanded for that half-year proportionate to that part of the
 half-year and if any such person shall have paid to the Under-
 takers a greater part of such rate the balance shall be refunded
 to him by the Undertakers.

(2) Particulars as to the effect of the provisions of this
 section shall be endorsed on all demand notes for the payment
 of rates served by the Undertakers.

Rates
 payable by
 owners of
 small
 houses.

36.—(1) Where the net annual value of a house supplied
 with water does not exceed thirteen pounds or the house is let
 to monthly or weekly tenants or tenants holding for any other
 period less than a quarter of a year the owner instead of the
 occupier shall if the Undertakers so determine pay the rate for
 the supply of water as from the usual quarter day next after
 the expiration of twenty-eight days from the date upon which

[1 EDW. 8. & Ministry of Health [Ch. lxxiv.]
1 GEO. 6.] Provisional Order Confirmation
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notice in writing of such determination shall have been given by the Undertakers to the owner (or if the Undertakers exercise the powers of the section of this order of which the marginal note is "Rates leviable half-yearly" as from the first day of January or the first day of July as the case may be next after the expiration of such period of notice) but the rate may be recovered by the Undertakers from the occupier and may if so recovered and if the occupier be not himself liable for the water rate under any lease or agreement whether in writing or otherwise be deducted by the occupier from the rent from time to time due from him to the owner :

Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate :

Provided also that if the Undertakers determine that the said rate shall be paid by the owner of any such house as aforesaid they shall require that the owner of every such house as aforesaid shall pay the said rate.

(2) The Undertakers shall make to the owner of any such house who pays the water rate due in respect of such premises before the expiration of one-half of the period in respect of which the water rate is charged or such later date as may be prescribed by the Undertakers an allowance equal to two and a half per centum of the amount of such water rate.

(3) The provisions of section 73 of the Waterworks Clauses Act 1847 shall mutatis mutandis extend and apply to any payments made under this section by the owner of any house and as if that section applied in the case of any lease or agreement whether made before or after the commencement of this order and whether in writing or otherwise.

37.—(1) Where two or more houses or buildings connected by any means of communication not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purpose of determining the amount of water rate chargeable by the Undertakers in respect of any supply of water for domestic purposes furnished by the Undertakers to any one or more of such two or more houses or buildings to be one tenement having a net annual value equal to the aggregate of the net annual values of the separate houses or buildings so occupied.

(2) Where any premises are supplied by meter and the minimum quarterly or other charge therefor is based upon the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value if such premises

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As to net
annual
value of
two or more
houses in
one occupa-
tion.

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A.D. 1937. are connected and occupied as mentioned in this section the
 — annual amount upon which such minimum quarterly or other
 PART III. charge is based shall be calculated in accordance with the pro-
 —cont. visions of this section.

Amendment of
 section 35 of
 Waterworks
 Clauses Act
 1847.

38. Section 35 of the Waterworks Clauses Act 1847 in its application to the Undertakers shall be read and construed as if the words "one-eighth part" were substituted therein for the words "one-tenth part."

Supplies to
 swimming
 baths and
 bathing
 pools.

39. Where a person who takes a supply of water for domestic purposes desires to use water for a swimming bath or bathing pool the Undertakers may require that all water required for such swimming bath or bathing pool shall be taken by measure and paid for at the rate for the time being in force for the supply of water by measure.

Charges for
 supplies for
 softening
 apparatus.

40.—(1) Where a person who takes a supply of water for domestic purposes from the Undertakers otherwise than by measure desires to use any of the water so supplied for any apparatus used for softening water which requires water for cleaning regenerating motive power or similar purposes the Undertakers may if they think fit require that all water so used shall—

- (i) be taken by measure and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (ii) be paid for at such rates as may be agreed between such person and the Undertakers.

(2) No charge shall be made under this section in respect of an apparatus used within the premises for which the supply of water is taken for softening water if one such apparatus only is used and the water softened thereby can be drawn off into a receptacle at one point only and is used solely for purposes for which the domestic rate is paid.

For protec-
 tion of
 electricity
 undertakers.

41. Nothing in this order shall—

- (i) extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1936 to which the provisions of section 15 of the Electric Lighting Act 1882 or of section 17 of the Schedule to the Electric Lighting (Clauses) Act 1899 apply except in accordance with and subject to the provisions of those sections; or
- (ii) prevent or affect the exercise by any such undertakers or by the Undertakers of any rights or powers under those provisions.

45 & 46 Vict.
 c. 56.
 62 & 63 Vict
 c. 19.

[1 EDW. 8. & *Ministry of Health* [Ch. lxxiv.]
1 GEO. 6.] *Provisional Order Confirmation*
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42. For the protection of the Southern Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the railway company and the Undertakers apply and have effect with reference to the exercise by the Undertakers of their powers under the Sevenoaks Water Act and Orders 1878 to 1937 (that is to say):—

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—cont.

For protec-
tion of
Southern
Railway
Company.

- (1) All works executed by the Undertakers (in this section referred to as "the said works" which expression shall also include (except where the context otherwise requires) any work of maintenance repair renewal or removal of any work so executed) involving interference with or in any way affecting the railway of the railway company (in this section referred to as "the railway") or the works or property of the railway company (which railway works and property are in this section together referred to as "the railway property") shall be carried out under the superintendence (if given) and to the reasonable satisfaction of the chief engineer of the railway company (in this section referred to as "the engineer") and according to plans and sections to be previously submitted to and approved by him or in case of difference as may be determined by arbitration in manner in this section provided:

Provided that if the engineer does not signify his approval or disapproval of such plans and sections within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof.

- (2) The said works shall be carried out by and at the expense of the Undertakers who shall restore and make good to the reasonable satisfaction of the engineer any portion of the railway property which may be disturbed or interfered with and the said works shall be carried out so as not to cause any interference with the passage or conduct of traffic over the railway.
- (3) If the railway company so elect they may themselves execute and maintain so much of the said works as may be carried over or under the railway or across the same on the level (other than the actual laying down and maintenance of the pipes) and may recover the reasonable costs of so doing from the Undertakers.
- (4) Any difference arising between the Undertakers and the railway company respecting any of the matters referred to in this section shall be referred to and determined by

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an arbitrator to be appointed (failing agreement) at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such reference and determination.

For protec-
 tion of
 Postmaster-
 General.

43. Nothing in this Part of this order shall affect any of the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1926.

For protec-
 tion of
 Kent County
 Council.

44. Unless and except so far as may be from time to time otherwise agreed in writing between the county council of the administrative county of Kent (in this section referred to as "the county council") and the Undertakers the following provisions shall have effect and apply to the exercise of the powers of the Undertakers so far as any of such powers affect any street (as defined by the Waterworks Clauses Act 1847) for the time being vested in the county council or bridge (which expression shall in this section include any bridge culvert or other similar structure the approaches thereto and the road over such structure and approaches) for the time being maintained by or at the expense of the county council :—

- (1) All mains pipes and works (other than replacements of existing mains pipes or works in the same position as the mains pipes or works replaced) of the Undertakers to be laid in under along or across the soil or pavement of any street or bridge shall be laid in such position and at such depth as the county council in writing under the hand of their surveyor (in this section referred to as "the county surveyor") may reasonably direct :
- (2) In the application of the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 30 of that Act shall (except in cases of leakage bursting or other emergency when as long notice shall be given as is reasonably practicable) in the case of a bridge be fourteen clear days instead of three days and in all other cases seven clear days instead of three days :
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall be accompanied by a section of the proposed works and shall (except as aforesaid) be delivered to the county surveyor by the Undertakers not less than in the case of any bridge fourteen clear days and in all other cases seven clear days before the Undertakers commence to interfere with any such bridge or street for the purpose of executing the works and

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any difference as to any such plan or section or as to the temporary or other works referred to in the said section 31 shall be determined by arbitration under this section instead of in the manner prescribed by the said section 31 :

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—cont.

- (4) Nothing in this order or any former Act or order relating to the undertaking shall authorise the Undertakers to interfere with the structural part of any bridge without the consent in writing of the county surveyor which may be given upon such conditions as the county council or the county surveyor may reasonably determine :
- (5) Nothing in this order or any former Act or order relating to the undertaking shall limit prejudice or affect the right of the county council at any time to divert widen alter the levels of or otherwise alter and improve any street and to remove alter rebuild widen or repair any bridge in under along over across or attached to which any mains pipes or works of the Undertakers are carried in the same manner as the county council might have diverted improved removed altered rebuilt widened or repaired any such street or bridge if this order or any former Act or order had not been made or passed and the Undertakers shall with all reasonable speed after receiving notice in writing under the hand of the county surveyor alter the position of the said mains pipes and works in such manner and to such extent as the county surveyor may reasonably require :

Provided that—

(a) the cost of carrying out any works necessary for the purpose of complying with any requirement of the county surveyor pursuant to the provisions of this subsection—

(i) in the case of the diversion widening alteration of the levels of or other alteration or improvement of any street shall be repaid to the Undertakers by the county council ;

(ii) in the case of the removal alteration rebuilding widening or reparation of any bridge shall be borne and paid by the Undertakers ; and

(b) during any such diversion improvement removal alteration rebuilding widening or reparation of such street or bridge as aforesaid the county council shall afford to the Undertakers all reasonable facilities for temporarily carrying such mains pipes

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PART III.
—cont.

and works along the street or across any stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes and the Undertakers may carry such mains and pipes accordingly :

- (6) All works shall be so executed by the Undertakers as not unreasonably to impede or interfere with the traffic on any street or bridge and the Undertakers shall not without the consent of the county surveyor (which consent shall not be unreasonably withheld) open or break up at any one time a greater length than one hundred and fifty yards of any street nor leave an interval of less than one hundred yards between any two places at which they may open or break up such street :
- (7) All costs charges amounts and expenses payable by the Undertakers to the county council or by the county council to the Undertakers under the provisions of this section shall be recoverable as a debt due from the Undertakers to the county council or from the county council to the Undertakers as the case may require :
- (8) If any difference at any time arises between the county council and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference to arbitration as aforesaid :
- (9) The provisions of this section shall be in addition to and not in substitution for the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes except so far as such last-mentioned provisions are expressly varied by the provisions of this section.

PART IV.

ADMINISTRATIVE.

Notices of
meetings.

45. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Undertakers whether ordinary or extraordinary may (if the directors so

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determine) be given by prepaid letter sent by ordinary letter post to each holder of shares or stock instead of by public advertisement :

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—cont.

Provided that—

- (a) the letters giving the notice shall be directed according to the registered address or other known address of each holder of shares or stock and posted not later than seven clear days before the date of the meeting ;
- (b) in proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time hereby prescribed.

46. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock of the Undertakers to which voting rights are attached any one of those persons may vote at any meeting at which holders of shares or stock of the same class are entitled to vote either personally or by proxy in respect of such shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member of the Undertakers in whose name any share or stock stands shall for the purposes of this section be deemed joint holders thereof.

Joint holders.

47. Notwithstanding anything contained in section 10 of the Companies Clauses Consolidation Act 1845 the Undertakers may substitute for the shareholders' address book provided under that section a card or other index (of a type to be approved by the auditors of the Undertakers) containing the names and addresses of the several shareholders of the Undertakers and that section in its application to the Undertakers shall be read and have effect accordingly.

Substitution of card index for shareholders' address book.

48. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Undertakers—

Register of shareholders and shareholders' address book.

- (a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Undertakers may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively ; or

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 —cont.

(b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Undertakers may keep in lieu thereof under the powers of this section.

PART V.

MISCELLANEOUS.

Several
 sums in one
 summons
 &c.

49.—(1) When the payment of more than one sum by any person is due under this order or any one or more of the Acts or orders from time to time relating to the Undertakers any summons or warrant issued for the purposes of any one or more of such Acts or orders in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

(2) Section 67 (Several names in one warrant) of the Sevenoaks Waterworks Act 1878 is hereby repealed.

Judges not
 disqualified.

50.—(1) A judge of any court or a justice shall not be disqualified from acting in the execution of this order or of any Act or order from time to time relating to the undertaking by reason of his being liable to the payment of any rate.

(2) Section 69 (Liability to rates not to disqualify justices) of the Sevenoaks Waterworks Act 1878 is hereby repealed.

Recovery
 of demands.

51.—(1) Proceedings for the recovery of any demand made under the authority of any Act or order from time to time relating to the undertaking or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort.

(2) Section 66 (Recovery of sums due) of the Sevenoaks Waterworks Act 1878 is hereby repealed.

Recovery
 of penalties
 &c.

52. Save as otherwise expressly provided by any Act or order from time to time relating to the undertaking or any incorporated enactment all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or order or any byelaw made in pursuance of a power thereby conferred may be prosecuted and recovered in a summary manner :

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

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53. The Minister may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of his powers under this order and section 290 of the Local Government Act 1933 shall apply as if the Undertakers were a local authority and as if this order were an enactment relating to the functions of a local authority.

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PART V.

—cont.

Inquiries
and
expenses.

54. All costs charges and expenses of and incidental to the application for this order and the preparation making and confirmation of this order shall be paid by the Undertakers and may in whole or in part be defrayed out of revenue.

Costs of
order.

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